

# Small claims court guide for contractor fraud, deposit recovery strategies — Action Checklist

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## CALCULATE YOUR DAMAGES

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- ☐ **Calculate Your Damages:** Complete a loss calculation worksheet itemizing your deposit, additional payments, materials, emergency costs, and new contractor premium with documentation sources for each entry.
- ☐ **Calculate Your Damages:** Add up every out-of-pocket expense you incurred because the contractor failed, including equipment rentals, emergency repairs, and storage fees, using invoices and receipts as backup.
- ☐ **Calculate Your Damages:** Determine the price difference between your original contract and the replacement contractor you hired, then save both contracts as documentation of that recoverable damage amount.
- ☐ **Calculate Your Damages:** Pull bank statements and receipts for every payment you made to the contractor so you can present concrete dollar amounts to the judge instead of vague estimates.

## PRESERVE ALL EVIDENCE

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- ☐ **Preserve All Evidence:** Screenshot every text conversation with the contractor showing full timestamps visible, saving each day's conversation as a separate image file in a dedicated folder.
- ☐ **Preserve All Evidence:** Export your text conversations using your phone's built-in export feature and email them to yourself, creating a timestamped copy that cannot be altered or lost.
- ☐ **Preserve All Evidence:** Back up all digital evidence to at least two separate locations, such as cloud storage and a dedicated email account, so one failure cannot destroy your entire case.
- ☐ **Preserve All Evidence:** Forward every important email about the project to a dedicated Gmail address and create a labeled folder called Contractor Case to keep communications organized and accessible.

## PREPARE YOUR CASE

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- ☐ **Prepare Your Case:** Organize all your evidence chronologically into a single folder labeled with the contractor's name and case date, including contracts, payment records, and communication logs.
  - ☐ **Prepare Your Case:** Look up your state's small claims court limit to verify your total claim amount falls within the jurisdiction before you file anything.
  - ☐ **Prepare Your Case:** Visit your local small claims court website to learn the specific filing forms required, acceptable document formats, and any pre-filing deadlines or procedures.
  - ☐ **Prepare Your Case:** Write a one-page summary stating what you hired the contractor to do, how much you paid, what they failed to deliver, and your exact claimed amount for quick reference in court.
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